

**TENTATIVE RULING FOR CIVDS1824405**  
**Department S24 - Judge Carlos M. Cabrera**

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

Evers, et al v. Hughes, et al

Motion: Vacate Dismissal

Movant: Ronaldus FJ. Evers (Evers) and Penny Lee Wagner (Wagner), collectively  
Plaintiffs)

Respondent: Reydis Santos (Santos) and JP & RS Remodeling, LLC, (Remodeling LLC),  
collectively (Defendants)(Bohlender/Plaintiff)

**RELEVANT FACTUAL AND PROCEDURAL BACKGROUND**

On September 30, 2024, the parties stipulated extending the five-year deadline to bring the case to trial under Code of Civil Procedure to March 18, 2025. On October 15, 2024, the court signed and entered an order extending the five-year deadline according to the party's stipulation. On February 18, 2025, at a status conference hearing, with both counsel present, the court continued the status conference to June 25, 2025. On June 25, 2025, there was no appearance on Plaintiffs' behalf at a status conference. The Court set an order to show cause re: dismissal for July 28, 2025.

On July 24, 2025, attorney Michael T. Stoller substituted in as counsel of record for Plaintiffs. On July 28, 2025, the Court continued the trial setting conference at the request of Plaintiff's counsel to December 11, 2025. This hearing was subsequently continued to January 13, 2026, to allow counsel to discuss settlement and trial dates. Plaintiffs' counsel failed to appear at the January 13, 2026 further trial setting conference. The Court thereafter set an order to show cause re: dismissal for March 12, 2026. On March 12, 2026, Plaintiffs' counsel again failed to appear. The Court ordered the case dismissed with prejudice for lack of prosecution. On June 18, 2026, Plaintiffs filed the instant motion to vacate the dismissal on grounds of attorney fault. Defendants oppose.

**ANALYSIS**

The instant motion is brought under Code of Civil Procedure section 473, subdivision (b), which provides for mandatory relief from dismissal when accompanied by an affidavit of attorney fault. It states in pertinent part:

Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. However, this section shall not lengthen the time within which an action shall be brought to trial pursuant to [Section 583.310](#). (CCP§473(b))

Counsel's affidavit is sufficient to relieve the Plaintiffs of the March 12, 2026 order dismissing this matter with prejudice for failure to persecute. Plaintiff's counsel is correct that all that is being requested is to vacate the dismissal order and place this matter back to its procedure posture. This is a proper request. As such the court will vacate its order of dismissal to allow counsel to attend and argue the OSC re Dismissal hearing.

#### **RULING**

1. Plaintiff's Motion to Vacate the March 12, 202 order dismissing this matter with prejudice for failure to prosecute is GRANTED.
2. An OSC re: Dismissal under California Code of Civil Procedure Section 583.310 is set for hearing on December 10, 2026 at 9am in S24. Counsel shall file and serve any pleadings in support of or in opposition to dismissal on or before November 20, 2026. This matter is otherwise stayed.
3. Pursuant to CCP§473(c)(1)(A) attorney Michel T. Stoller is sanctioned \$1000. Monetary sanctions to be paid within 20 days directly to Defiant Law.
4. Movant to give Notice.

**TENTATIVE RULING FOR CIVSB2536824**  
**Department S24 - Judge Carlos M. Cabrera**

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Riggs v. Llamas, et al

Motion: Discovery Sanctions

Movant: Kathryn Delta Riggs (Riggs/Plaintiff)

Respondent: Joselito Llamas (Llamas/Defendant)

**RELEVANT FACTUAL AND PROCEDURAL BACKGROUND**

On December 16, 2025, Plaintiff filed her Complaint against Defendant pleading two causes of action: (1) negligence and (2) negligence per se. Thereafter, Plaintiff served a demand to inspect Llamas' 2010 Lexus. She objected because she did not have control or possession of the vehicle. In the meet-and-confer process, it was disclosed that insurer Mercury Insurance sold the vehicle for salvage on September 19, 2025. Plaintiff now moves for evidentiary and monetary sanctions against Defendant for spoliation. Defendant Llamas opposes.

On July 21, 2025, the collision between Riggs and Llamas occurred. On July 23, 2025 and August 7, 2025, Mercury, Llamas' insurance carrier, sent Riggs' letters that indicate the accident was her fault. (Quincey Decl. at ¶3, Exh. A.) On September 18, 2025, Plaintiff through attorney Quincey sent Mercury a letter that Llamas was at fault for the accident, requested coverage limits, and indicated a non-response would result in litigation being filed. (Quincey Decl. at ¶4, Exh. B.) On an unknown date, Mercury sent Riggs a letter in which Mercury asked that she not destroy any evidence. (Quincey Decl. at ¶5, Exh. C.) On September 19, 2025, Mercury sold the 2010 Lexus (Subject Vehicle) for salvage. (Quincey Decl. 6, Exh. D.) On March 17, 2026, Plaintiff's Counsel sends Defendant's Counsel a letter that asked Defendant to preserve her vehicle. (Quincey Decl. at ¶8, Exh. E.)

**ANALYSIS**

A form of discovery abuse is the spoliation of evidence. (*Victor Valley Union High School Dist. v. Superior Court (Doe)* (2023) 91 Cal.App.5th 1121, 1139 [*Victor Valley*].) Spoliation is the intentional destruction or alteration of relevant evidence or the failure to preserve evidence for another party's use in pending or future litigation. (*Ibid.*)

A party engages in spoliation of evidence if it has a duty to preserve the evidence at the time the evidence was altered or destroyed. (*Victor Valley, supra*, 91 Cal.App.5th at p. 1140.) A duty to preserve exists if litigation is pending, or, the party is objectively aware and reasonably anticipates future litigation. (*Id.* at pp. 1133, 1142, 1144, 1149.) Future litigation is reasonably foreseeable if it is probably or likely to arise from the dispute. (*Id.* at pp. 1133, 1144-45, 1149.) Furthermore, the evidence must be relevant. (*Id.* at pp. 1133, 1149.) Lastly, the moving party must establish the spoliation of the evidence had a substantial probability of damaging its ability to establish an essential element of a cause of action or defense. (*Williams v. Russ* (2008) 167 Cal.App.4th 1215, 1227.)

On September 19, 2025, Mercury sold the 2010 Lexus (Subject Vehicle) for salvage. This was after Mercury sent a letter indicating that Riggs was at fault and Llamas had sent Mercury a letter stating that Llamas was at fault. As such, with differing opinions of fault a reasonable person would anticipate litigation. However, even if Mercury should have reasonably anticipated litigation, it has not been demonstrated that they reasonably should have known a physical inspection of the Subject Vehicle would be necessary.

Plaintiff fails to present evidence that the subject vehicle was an essential piece of evidence. Counsel's declaration is not evidence of actual relevant evidence was lost with the selling of the Subject Vehicle, but rather, it is Counsel's speculation of potential relevancy. In particular, Counsel offers no evidence that the Subject Vehicle is of a model that would record any particular data after an accident. Also, he offers nothing explaining why the actual vehicle is necessary to evaluate or reconstruct the accident. The general specification of 2010 Lexus vehicles is discoverable without inspecting the Subject Vehicle. Nothing is offered that the evidence on relevant speeds and events leading up to and the moment of the accident cannot be determined from other sources.

Finally, Defendant did not engage in spoliation. Even if the court concluded that Mercury engaged in spoliation, Plaintiff does not explain or justify why Defendant Llamas then should be subject to evidentiary and monetary sanctions. Although Mercury is Llamas' insurance carrier, it is not established how Llamas should be held liable and responsible for Mercury's conduct.

### **RULING**

1. Plaintiff's Motion for Discovery Sanctions is DENIED.
2. Movant to give Notice.

**TENTATIVE RULING FOR CIVSB2521925**  
**Department S24 - Judge Carlos M. Cabrera**

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Brand v. General Motors LLC, et al  
Motion: Attorney Fees  
Movant: Scott W. Brand (Brand/Plaintiff)  
Respondent: General Motors LLC (GM/Defendant)

**RELEVANT FACTUAL AND PROCEDURAL BACKGROUND**

On July 29, 2025, Plaintiff filed a Complaint against Defendant alleging a cause of action for Violation of the Song-Beverly Consumer Warranty Act. Since this case was filed after January 1, 2025, the initial disclosure and deposition requirements of Code of Civil Procedure section 871.26 apply. The parties settled following an exchange of initial disclosures, and basic settlement discussions hearings. (Martin Decl. ¶ 6.) Plaintiff now moves for attorney fees and costs. Defendant opposes.

**ANALYSIS**

Attorney fees are recoverable in litigation when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).) The Song Beverly Consumer Warranty Act (Act) provides that a prevailing buyer may recover his attorney fees, expenses, and costs. (Civ. Code, §1794, subd. (d).) A buyer prevails under the Act when he recovers damages or other legal/equitable relief. (Civ. Code, § 1794, subd. (a).) Neither party disputes Plaintiffs' right to recover attorney fees under the Act.

In determining the fees, the goal is to determine a reasonable fee. (*Chavez v. City of Los Angeles* (2010) 47 Cal.4th 970, 985 (*Chavez*).) This is done by applying the lodestar method, i.e., multiplying the number of hours reasonably expended by the reasonable hourly rate prevailing in the community for similar work. (Civ. Code, § 1794, subd. (d); *Chavez, supra*, 47 Cal.4th at p. 985; *Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 817.) The Court can reduce the hours that appear unreasonably inflated. (*Chavez, supra*, 47 Cal.4th at p. 990.) Additionally, inefficient, or duplicative efforts are not subject to compensation. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132 (*Ketchum*); *Premier Medical Management Systems, Inc. v. California Ins. Guarantee Ass'n* (2008) 163 Cal.App.4th 550, 556

The burden is on the party seeking attorney fees to prove the fees are reasonable. (*Goglin v. BMW of North America, LLC* (2016) 4 Cal.App.5th 462, 470; *Center for Biological Diversity v. County of San Bernardino* (2010) 188 Cal.App.4th 603, 615.) “[Parties] are not entitled to compensation for this work merely because it was performed. It was their burden to persuade the trial court the work was reasonably necessary, both as to the particular tasks performed and the amount of time devoted to them.” (*Baxter v. Bock* (2016) 247 Cal.App.4th 775, 793.)

### **Hourly Rate**

In fixing the reasonable fees, the court must determine the reasonableness of the attorney’s hourly rates. (*Cordero-Sacks v. Housing Authority of City of Los Angeles* (2011) 200 Cal.App.4th 1267, 1286.) Generally, a reasonable hourly rate is the prevailing rate in the community where the case is litigated for similar work. (*PLCM Group v. Dexter* (2000) 22 Cal.4th 1084, 1095 (*PLCM*); *Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157.) Considering the qualifications and experiences of each attorney, the hourly rates are reasonable.

### **Reasonable Hours**

The starting point for every fee award is calculating an attorney’s services by the time expended on the case. (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 815.) This is because a court must not blindly accept an attorney’s reported hours but must carefully review the attorney’s documented hours. (*Ketchum, supra*, 24 Cal.4th at p. 1132.) The party opposing fees has the burden to demonstrate with evidence that the hours spent are duplicative, inappropriate, or excessive. (*Premier Med. Mgmt. Sys. v. Calif. Ins. Guarantee Ass’n* (2008) 163 Cal.App.4th 550, 562-564.)

### **Instant Motion Fee Entries**

The court calculated total billed for the instant fee to be 12.9 hours. The time billed for the attorney fee motion is excessive. The Notice of Motion, Motion and Memorandum of Points and Authorities are boilerplate pleadings. The only information that is updated is the limited case specific information. The declarations themselves provide only basic information about the case. The court shall reduce the time to a total of 3.0 hours at \$500 per hour. The Court will also remove the “wrap up fees” of \$4000.

### **July 25 Entry**

The July 25, 2025 entry for 2.2 hours is not a charge regarding the commencement or prosecution of the case. Rather it is time incurred for the retention of the Plaintiff. The charge of

July 25, 2025, does qualify as fees in the commencement or prosecution of the case. Therefore, the court will remove 2.2 hours at \$500 per hour.

### **July 29 Entry**

The Complaint in this case is a boilerplate pleading with only the case specific information being inserted. The entry for 1.5 hours is excessive. The court will remove 1 hour at \$500 per hour.

### **November 6<sup>th</sup> Entry**

The time billed is not excessive.

### **January 6 and January 7 Entries**

The time billed is not excessive given the large amount of information that is shared with the initial disclosures. Furthermore, each case does have a unique set of circumstances and Defendant has not provided any evidence that this case is identical to all the other cases these firms handle.

### **February 27, March 16 – March 18 Entries**

The time billed is not excessive. This is a reasonable amount of time to prepare for mediation given the issues involved.

### **March 18 Entry**

The time billed is the time to attend and participate in the medication. The time is reasonable. GM cannot reasonably identify how long the actual mediation was for this matter.

### **Administrative and Clerical Tasks**

Although attorney fees may include paralegal (or law clerk) fees (*Roe v. Halbig* (2018) 29 Cal.App.5th 286, 312), it does not include secretary or receptionist fees. Secretarial tasks are not compensable. (*Missouri v. Jenkins by Agyei* (1989) 491 U.S. 274, 288, fn. 10; *Neil v. Commissioner of Social Sec.* (9th Cir. 2012) 495 Fed.Appx. 845, 847; *Mountjoy v. Bank of America, supra*, 245 Cal.App.4th at p. 270.) GM has not made a compelling argument that counsel has billed for administrative tasks.

### **Multiplier**

The purpose of a multiplier is “to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services.” (*Thayer v. Wells Fargo Bank* (2001) 92

Cal.App.4th 819, 833.) However, the multiplier cannot apply to the work on the attorney fee motion. (*Pellegrino v. Robert Half Intern., Inc.* (2010) 182 Cal.App.4th 278, 296.)

In the case at hand, no multiplier is justified associated with the contingency risk when the hourly rate charged considers the contingency nature. Although good results occurred, it is not demonstrated that they were extraordinary versus the standard type of settlement in a lemon law case. It appears all sides worked to gather the necessary information and ultimately settle the case. Overall, a multiplier is not warranted in this matter.

### **Costs**

Costs are sought in the amount of \$1,026.24. GM has not disputed the costs of suit. As such, they are awarded in the amount sought.

### **RULING**

1. Plaintiff's Request for Judicial Notice is DENIED.
2. Plaintiff's Request for Attorney Fees and Costs is GRANTED. Plaintiff is awarded attorney fees of \$19,300.00 and \$1026.24 in costs.
3. Movant to give Notice.